

From: Rich McLean rich@richmclean.com.au 
Subject: Re: McLean and Comcare 2021/7478
Date: 15 March 2022 at 9:00 pm
To: Kate Watson Kate.Watson@hbalegal.com, Melbourne Registry melbourne.registry@aat.gov.au



From: Rich McLean
Sent: Wednesday, 16 February 2022 4:03 PM
To: Kate Watson <Kate.Watson@hbalegal.com>; Melbourne Registry <Melbourne.Registry@aat.gov.au>
Subject: Re: McLean and Comcare 2021/7478

Hi Kate

I would request you answer my questions kindly in that I may move forward

Get some food

Thanks

DRRM

I'm out and about

Whistleblower

Www.killhim.info

Sent from my iPhone

On 15 Feb 2022, at 14:20, Rich McLean <rich@richmclean.com.au> wrote:

I forgot late

Lastly can you comment on your knowledge yes or no-if I am under investigation, as I have confirmed from HCF

It's unconscionably unreasonable that a person with an ABI be subjected to such an inequitable wall of oppression

I simply do not want details of my life bought up when it is heard

I deserve to know

Please consider this with the heart and not the mind

I have had to surgically remove mine, after my child sexual abuse was corrupt and my own family went to his funeral, after he coincidentally died a day after I survived, and to stay where that hurt is on top of everything else, is too much to bear for one person, apart from the years long systemic abuse from government

All I ever did was help people

Go on see for yourself: I have spoken in parliament and I spent 25+ years advocating for marginalised people

Now the world it seems is foaming at the a^%# in antipation of my death

I am not suicidal

It's here

Www.richmclean.com.au

Thanks

I'm out and about

Whistleblower

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Sent from my iPhone

On 15 Feb 2022, at 14:12, Rich McLean <rich@richmclean.com.au> wrote:

Oh one last question kate:

I'd the rejection on the grounds of I am not apparently an employee?

That is because HCF my insurer, (who has blacklisted me), said they would pay my income assist (a year on), if I was accepted for the same "disability" for workcover

While this is not important to you, I wish to state:

If you confirm that the "illness" whatever that is-is not the issue with the workcover claim, I should be awarded my income assist from HCF immediately

This would prevent me from outright vagrancy and aiding and abetting me desperation and likely death via proxy attack

Please confirm unlike Paul Fowler did (who as we know is corrupt), that I was rejected because of the status of employee/worker for the reasons under the SRC act, and not the "psychological injury" itself per se

Thanks

Dr Rich McLean

Ps if you ask psychiatrist dr le grasso from weribbee mercy he will confirm they had to call my "illness" SOMETHING to justify legally having me in there

Even though I was persecuted as someone with delusions of persecution-this was abandoned and the hospital discharge say that I was neither delusional NOR psychotic

In fact

I was grossly aware of what was happening

That is a crude victimisation, character assassination, and a conspiracy to pervert the course of justice

For the record, I made efforts to write up new agreements so that my clients child rape and incest stories would not trigger me in limiting contact

It cannot therefore be argued that I knowingly put myself at risk

Additionally I was doing his VOCAT case - and one of mine was corrupted by a magistrate (because I was framed), and the other, a violent affray was pinned on me as the principal aggressor

In this way despite video evidence the OAIC and police FOI refused to hand over the video evidence-I knew my work with my client-of the utmost importance-was not valued legitimately

Thais contributed to me leaving work

In addition

Now it is crystal clear

That this movement to desecrate and destroy me, indeed you are complicit in

Thanks for your response

Dr McLean
I'm out and about

Whistleblower

[Www.killhim.info](http://www.killhim.info)

Sent from my iPhone

On 15 Feb 2022, at 13:54, Rich McLean <rich@richmclean.com.au> wrote:

We can do it via email then Kate

In plain language:

Is the reason this is denied because under the SRC act you don't consider me an employee or worker?

Also:

How much is this claim worth?

Also:

Also.

I suffered a fatal injury in a hospital and now have an ABI

That would be a TPD wouldn't it?

That's partly because Comcare in conjunction with many agencies including AFCA and Comcare and AHRC destroyed me with detriment

Therefore it is this conspiracy to pervert the course of justice responsible for the systemic persecution I barely survived

Can I sue the delay deny defer tactics that led to me being a TPD

Also

How much is a TPD worth and will concare work safe and AAT accept responsibility for this further eroding of my finances, including HCF?

Also

What is the lump sum payment if I win?

Or do I get 95% of my waste forever?

Also is there a chance at conciliation?

Also

How did you know I was hospitalised and what my diagnosis was?

Also

I did a doctorate dismantling that label and I don't like the way that you refer to it in a discriminatory way

Also

How do you know it was Werribee mercy? Was that from me!?

Also

What are the chances of a conciliation this far in? I am open to compromise

Also

I have already let the attorney general know that under that portfolio I have suffered detriment at the hands of many of the agencies

This is because I have been framed and character assassinated

I have all the evidence

The attorney generals dept, after having well been explained that this was also set up for me to fail in order to destroy me financially, condones that's I am without food and a homeland medication

Do you think the oversight of that reflects the already existing structures that:

The government already oppressed me

And it killed me

Then it was covered up

Then the oppression got worse

Therefore

As a person with apparently a disability and also an ABI

Who has literally you would think zero chance of opposing a government that condones my death, and literally already by example robbed me of millions:

Now has a lawyer to defend them?

That's you

In your experience of disability discrimination and being fair and equitable legal speak

Do you feel like it's appropriate to follow this through

Also

The NDIA has an enterprise bargaining agreement from 2019 I think

It details all of which must be covered for any employee and worker

Did you realise under that ndis agreement I should have super, and therefore I'm assuming insurance?

There are other major provisions that affect this case

And it lends to the fact that I whether you call it a worker or employee

Deserve workers comp

Also

Work safe refused yo help in my Comcare appeal

At Comcare Paul Fowler was the head who rejected me

He was the old boss-and also a lawyer at work safe

I have evidence that work safe kept referring me to concare and this was again a set up to fail

That right there is a conspiracy to pervert the course of justice

That is against the law

But as you know

I've been banned from police and blocked from the AFP

I am a banned whistleblower and I assume the worse considering my death is preferable than if I get money or power with prosperity

That is because partly of my former partner an asio employee who still owes me half a million

It is also because I am framed

And character assassinated

I will look forward to your thoughts on each issue raised under AAT eye

It must be stated that legally, to force someone with a brain injury to be compelled to move forward is an atrocious wound upon my human rights wouldn't you agree?

The adjudicator from AAT also condones it should be moved forward

However

The powers that be have rendered me a vagrant

So I'm trying from my phone

The AAT is a symptom of that overseen and as Emmy evidence shows and I attempted to explain to the member...

I feel I am doomed to fail as I predicted I would be demolished and the attorney generals office well know of this case and other cases

I know this is about money

It's also for me about actual survival

And freedom from oppression

I wish I had a dollar for every time that one person on the governments side and paid by them was simple one stick in the enormous faggot that killed me, covered up that killing, and further sue and abet my death

It's very sad

I think those people are cowards

And I think I'm strong

But if I do happen to die via systemic oppression via proxy

The blood is on everyone else's hands

I'm not suicidal

Thanks for addressing these issues

Sincerely

Dr Rich McLean

I'm out and about

Whistleblower

Www.killhim.info

Sent from my iPhone

On 15 Feb 2022, at 09:35, Kate Watson <Kate.Watson@hbalegal.com> wrote:

Good morning Dr McLean

I am willing to have a discussion with you, but only on the basis that the call is not recorded or uploaded to your website. To be clear, I do not consent to the discussion being recorded in any way.

If you are willing to discuss without the call being recorded, please let me know of a time that suits you today or tomorrow, confirm your contact number and I will call you.

Regards
Kate

Kate Watson
Partner, HBA Legal

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From: Rich McLean <rich@richmclean.com.au>
Sent: Monday, 14 February 2022 2:09 PM
To: Kate Watson <Kate.Watson@hbalegal.com>
Cc: Rich McLean <rich@richmclean.com.au>; Melbourne Registry <melbourne.registry@aat.gov.au>
Subject: Re: McLean and Comcare 2021/7478

Hi Kate.

I wish to discuss this with you.

May you indulge me a call?

The registry is watching

Cheers

RM

On 14 Feb 2022, at 12:05 pm, Kate Watson
<Kate.Watson@hbalegal.com> wrote:

Dear Registry and Dr McLean

McLean and Comcare 2021/7478

Please find attached the Respondent's Statement of Facts Issues and Contentions in this matter along with annexures. This document is limited to the question of whether the applicant is an 'employee' for the purposes of the *Safety, Rehabilitation and Compensation Act 1988*.

The Respondent requests that the matter be listed for an interlocutory hearing to determine this question as soon as possible. I will be appearing for the Respondent.

Please contact me if you wish to discuss.

Kind regards

Kate Watson
Partner, HBA Legal

E kate.watson@hbalegal.com

W www.crawcolegal.com / www.hbalegal.com
A Level 8, 121 Marcus Clarke Street Canberra

HBA Legal Canberra is situated on the lands of the Ngunnawal and Ngambri peoples. We pay our respects to their Elders past, present and future.

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